



JOHNSTONE SUPPLY

Rochester: 95 Halstead Street, 14610
Toll Free: (800) 724-8806
Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

Syracuse: 835 Canal Street, 13210
Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

Order on-line at www.JohnstoneSupply.com/141

NEW HIRE CHECKLIST

Employee Name:

Hire Date:

Rene Spielberger

Employee ID #:

7/8/2021

1. For Accounting to do prior to New Hire starting:

- Set up Computer Profile, Windows Login
- Set up Microsoft Office 365 (email, calendar, skype, intranet services)
- Set up Inform-ERP System
- Set up Johnstone Employee Network (JEN/JXI)
- Set up Voicemail (Extension)
- Add to Phone List
- Set up as User in Address Book in Copiers & Printers
- Set up in Johnstone University- JU Online
- Set up Johnstone Email
- Set up Building Access & Alarm Code

2. For HR to do with New Hire - complete the following items during orientation:

- ✓ Sign Offer Letter
- ✓ Application
- ✓ Sign Job Description
- ✓ New Hire Form/Employee Information Form
- ✓ Pay Rate Acknowledgement-2 copies
- ✓ W4 Tax Withholding Form
- ✓ IT-2104 Employee's Withholding Allowance Certificate
- ✓ Post-Offer Self-Identification Form
- ✓ I-9 Eligibility Form
- ✓ Direct Deposit Form
- ✓ Benefits Overview
- ✓ Receipt of Handbook
- ✓ Receipt of Non-Harassment Policy
- ✓ Receipt of Sexual Harassment Prevention Policy & Complaint Form
- ✓ Receipt of Smoking Policy
- ✓ Receipt of Confidentiality Policy
- ✓ Authorization to Deduct Expenses



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Employee Account Information

3. HR will hand Employee during orientation:

- ✓ Employee Handbook
- ✓ Copy of Benefits Overview
- ✓ New Health Insurance Marketplace Coverage
- ✓ COBRA General Notice
- ✓ Allworx Voicemail Greetings Setup Guide
- ✓ Payroll Schedules
- ✓ Copy of Pay Rate Acknowledgement Form
- ✓ Copy of Job Description
- ✓ Copy of Offer Letter

4. HR to do Training during New Hire's orientation:

- ✓ Sexual Harassment Prevention Training

5. For HR to do on New Hire's first day after orientation is complete:

- ✓ Set up in Payroll and Time & Attendance
- ✓ Add to Org Chart
- ✓ Scan New Hire paperwork and Save to Online Employee File
- ✓ Create Personnel, Medical & Payroll files & Labels for New Hire paperwork
- ✓ File Form I-9 in Active Forms I-9 Folder
- ✓ File Background Check forms and information in the Background Check File
- ✓ Add Employee to Payroll File and Commission/Bonus File online



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T: (315) 479-8800 • F: (315) 479-8600
E: SYRSales@JohnstoneHVAC-NY.com

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6/3/2021

Ms. Renee Spielberger
7527 Gilbert Road
Bergen, NY 14416

Dear Renee:

I am pleased to offer you the position of Territory Sales Manager for Johnstone Supply of Central NY. This letter is to confirm my offer and your acceptance of the position. You will be reporting directly to me as your Regional Sales Manager.

Your compensation package includes three components: salary, commission/bonus, and a benefit program. This position will pay at the rate of \$2,115.38/biweekly. Additionally, over the next 15 months, we will guarantee an additional \$2,666.67/month in salary draw. Over the next 3-4 months we will review your performance and will work with you to develop a commission and bonus based upon several factors including gross profit. Subsequently, your commission will be compared to your draw and you will receive the greater of the two.

Since transportation will be an integral part of your job you will be provided with a suitable company vehicle for your use professionally. A gas card will also be provided for business use only.

Lastly, with the successful completion of 90 days of employment you will become eligible for several employment benefits as outlined on the attached Benefits Overview.

Subject to a routine motor vehicle and background check your starting package is based upon your indications and statements to me and others in our company that you are fully capable of meeting the requirements and description of the job as has been outlined to you previously. This offer is made on an "at will" basis and should not be construed as a guarantee of employment for any specific duration.

Please indicate your acceptance of our offer by signing below and returning one copy of the letter, with your original signature, to me no later than 6/11/2021. We would appreciate having your decision as soon as possible, but please feel free to talk to me further if you have any questions.

Renee, I am confident that you have the skills, enthusiasm, and talent to be successful in this challenging position. I look forward to having you on my team.

Welcome to JOHNSTONE SUPPLY!

Sincerely,

Ken Livingston
President
585-441-0340

Attachments: Job Description, Benefits Overview, Driver Information Request, List of Acceptable Documents for Form I-9, Background Authorization

-Over-

I have read and understood the provisions of this offer of employment, and I accept the above conditional job offer. I understand that my employment with Johnstone Supply of Central NY is considered at will, meaning that either the company or I may terminate this employment relationship at any time with or without cause or notice.

This offer shall remain open until 6/11/2021. Any acceptance postmarked after this date will be considered invalid.

Date: 6/7/21

Print Name: RENEE E. SPIELBERGER

Signature: Renee E. Spielberger

Please Print Clearly

APPLICATION FOR EMPLOYMENT

Company Name Johnstone Supply of CNY

Date 7/8/21

Please Answer All Questions. Résumés Are Not A Substitute For A Completed Application.

We are an equal opportunity employer. Applicants are considered for positions without regard to veteran status, uniformed servicemember status, race, color, religion, sex, national origin, age, physical or mental disability, genetic information or any other category protected by applicable federal, state, or local laws.

For Rhode Island Employers Only: This Company is subject to the Workers' Compensation laws of the State of Rhode Island.*

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE.

Applicant Name Renee Spielberger Position Applied For Outside Sales (list only one)

Telephone Number (585) 230-9659 Alternate/Cellular Telephone Number () - -

Present Address 7527 Gilbert Rd.

Rochester NY 14416 Street, Apartment, or Unit Number
City State Zip

How long have you lived there 25 Years/Months

Email Address (optional) Renee464@aol.com

If under the age of 18, can you produce the necessary work certificate at the time of employment? Yes ☐ No ☐

Type of employment desired? Full-time ☒ Part-time ☐ (Specify Hours) _____

Are you willing to work overtime? Yes ☒ No ☐ Date on which you can start work if hired _____

Have you previously applied for employment with this Company? Yes ☐ No ☒

If Yes, when and where did you apply? _____

Have you ever been employed by this Company? Yes ☐ No ☒

If Yes, provide dates of employment, location and reason for separation from employment. _____

If applicable, below list any other names by which you have been known which may be necessary to allow us to confirm your work and educational record. For example, change of name, use of an assumed name, nickname, etc.

Renee Korman, Renee Spielberger

Education	School Name and Location (Address, City, State)	Course of Study or Major	Graduate? Y or N	# of Years Completed	Honors Received
High School	<u>Onitona Central</u>		<u>Y</u>	<u>4</u>	<u>2</u>
College	<u>Forsyth</u>	<u>music</u>	<u>Y</u>	<u>2</u>	
Graduate/ Professional					
Trade or Correspondence	<u>Cosmetology</u>	<u>Cosmetology</u>	<u>Y</u>	<u>1</u>	

WORK EXPERIENCE

Please list the names of your present and/or previous employers in chronological order with present or most recent employer listed first. Provide information for at least the most recent ten (10) year period. Attach additional sheets if needed. If self-employed, supply firm name and business references. You may include any verifiable work performed on a volunteer basis, internships, or military service. Your failure to completely respond to each inquiry may disqualify you for consideration from employment. Do not answer "see résumé."

Employer

Syracuse Supply 43 Rte. 59, Phoenix, NY Tooling / Coolant Dist.
Name Address Type of Business
Telephone (585) 481-5039 Dates Employed From 9 / 1 / 19 To 7 / 6 / 21
Job Title Industrial Sales Eng. Duties Outside Sales
Supervisor's Name Stephen Marsh May we contact? ☒ Yes ☐ No If No, why not? 607-206-8220
Reason for Leaving? New position
What will this employer say was the reason your employment terminated? For another position
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 2 wks 2 days

Employer

Horizon Solutions Jasons Rd. Lock 14623 Dist. - Tooling
Name Address Type of Business
Telephone (585) Dates Employed From 2 / 1 / 16 To 8 / 31 / 19
Job Title Ind. Sales Mgr. Duties _____
Supervisor's Name Scott May we contact? ☒ Yes ☐ No If No, why not? _____
Reason for Leaving? New Position
What will this employer say was the reason your employment terminated? New position
Were you ever disciplined? If so, for what? NO
How much notice did you give when resigning? If none, explain. 3 wks.

Have you ever been terminated or asked to resign from any job? ☐ Yes ☒ No If Yes how many times? _____

Has your employment ever been terminated by mutual agreement? ☐ Yes ☒ No If Yes how many times? _____

Have you ever been given the choice to resign rather than be terminated? ☐ Yes ☒ No If Yes how many times? _____

If you answered Yes to any of the above three questions, please explain the circumstances of each occasion.

REFERENCES [Optional]

Please list the names of additional work-related references we may contact. Individuals with no prior work experience may list school or volunteer-related references.

NAME	POSITION	COMPANY	WORK RELATIONSHIP (i.e. supervisor, co-worker)	TELEPHONE
<u>Patricia Moore</u>	<u>Tooling Spec.</u>	<u>Horizon</u>	<u>Co-worker</u>	<u>315-794-0305</u>
<u>Tom Tressler</u>	<u>Trainer/Mgr.</u>	<u>Bremtag</u>	<u>Trainer</u>	<u>607-346-2385</u>

Please list the names of personal references (not previous employers or relatives) who you know that we may contact.

NAME	OCCUPATION	ADDRESS	TELEPHONE	NUMBER OF YEARS KNOWN
Reanne Wilkosz	Self Emp.	Oakfield, NY	585-993-0393	15

DRIVING INFORMATION [Optional] (Complete only if driving is an essential function of the job for which you are applying).

Do you have a current valid driver's license? ☒ Yes ☐ No If yes, License No. 606-176-805 - N.Y.
Expiration Date: _____

If you do not have a driver's license for the state in which you currently reside, why not?

Has your license ever been suspended or revoked? ☐ Yes ☒ No

If yes, explain:

Do you have personal automobile insurance? ☒ Yes ☐ No

If no, explain:

Have you ever been denied personal automobile insurance or has it ever been terminated or suspended? ☐ Yes ☒ No If yes, explain:

Please list all moving traffic violations in the last five (5) years:

OFFENSE	DATE	LOCATION	COMMENTS
N/A			

APPLICANT CERTIFICATION

I understand and agree that if driving is a requirement of the job for which I am applying, my employment and/or continued employment is contingent on possessing a valid driver's license for the state in which I reside and automobile liability insurance in an amount equal to the minimum required by the state where I reside.

I understand that the Company may now have, or may establish, a drug-free workplace or drug and/or alcohol testing program consistent with applicable federal, state, and local law. If the Company has such a program and I am offered a conditional offer of employment, I understand that if a pre-employment (post-offer) drug and/or alcohol test is positive, the employment offer may be withdrawn. I agree to work under the conditions requiring a drug-free workplace, consistent with applicable federal, state, and local law. I also understand that all employees of the location, pursuant to the Company's policy and federal, state, and local law, may be subject to urinalysis and/or blood screening or other medically recognized tests designed to detect the presence of alcohol or illegal or controlled drugs. If employed, I understand that the taking of alcohol and/or drug tests is a condition of continual employment and I agree to undergo alcohol and drug testing consistent with the Company's policies and applicable federal, state, and local law.

If employed by the Company, I understand and agree that the Company, to the extent permitted by federal, state, and local law, may exercise its right, without prior warning or notice, to conduct investigations of property (including, but not limited to, files, lockers, desks, vehicles, and computers) and, in certain circumstances, my personal property.

I understand and agree that as a condition of employment and to the extent permitted by federal, state, and local law, I may be required to sign a confidentiality, restrictive covenant, and/or conflict of interest statement.

I certify that all the information on this application, my résumé, or any supporting documents I may present during any interview is and will be complete and accurate to the best of my knowledge. I understand that any falsification, misrepresentation, or omission of any information may result in disqualification from consideration for employment or, if employed, disciplinary action, up to and including immediate dismissal.

THIS COMPANY IS AN AT-WILL EMPLOYER AS ALLOWED BY APPLICABLE STATE LAW. THIS MEANS THAT REGARDLESS OF ANY PROVISION IN THIS APPLICATION, IF HIRED, THE COMPANY OR I MAY TERMINATE THE EMPLOYMENT RELATIONSHIP AT ANY TIME, FOR ANY REASON, WITH OR WITHOUT CAUSE OR NOTICE. NOTHING IN THIS APPLICATION OR IN ANY DOCUMENT OR STATEMENT, WRITTEN OR ORAL, SHALL LIMIT THE RIGHT TO TERMINATE EMPLOYMENT AT-WILL. NO OFFICER, EMPLOYEE OR REPRESENTATIVE OF THE COMPANY IS AUTHORIZED TO ENTER INTO AN AGREEMENT—EXPRESS OR IMPLIED—WITH ME OR ANY APPLICANT FOR EMPLOYMENT FOR A SPECIFIED PERIOD OF TIME UNLESS SUCH AN AGREEMENT IS IN A WRITTEN CONTRACT SIGNED BY THE PRESIDENT OF THE COMPANY. IF HIRED, I AGREE TO CONFORM TO THE RULES AND REGULATIONS OF THE COMPANY, AND I UNDERSTAND THAT THE COMPANY HAS COMPLETE DISCRETION TO MODIFY SUCH RULES AND REGULATIONS AT ANY TIME, EXCEPT THAT IT WILL NOT MODIFY ITS POLICY OF EMPLOYMENT AT-WILL.

I authorize the Company or its agents to confirm all statements contained in this application and/or résumé as it relates to the position I am seeking to the extent permitted by federal, state, or local law. I agree to complete any requisite authorization forms for the background investigation which may be permitted by federal, state and/or local law. If applicable and allowed by law, I will receive separate written notification regarding the Company's intent to obtain "consumer reports."

I authorize and consent to, without reservation, any party or agency contacted by this employer to furnish the above-mentioned information. I hereby release, discharge, and hold harmless, to the extent permitted by federal, state, and local law, any party delivering information to the Company or its duly authorized representative pursuant to this authorization from any liability, claims, charges, or causes of action which I may have as a result of the delivery or disclosure of the above requested information. I hereby release from liability the Company and its representative for seeking such information and all other persons, corporations, or organizations furnishing such information. Further, if hired, I authorize the company to provide truthful information concerning my employment to future employers and hold the company harmless for providing such information.

If hired by this Company, I understand that I will be required to provide genuine documentation establishing my identity and eligibility to be legally employed in the United States by this Company. I also understand this Company employs only individuals who are legally eligible to work in the United States.

THIS APPLICATION WILL BE CONSIDERED ACTIVE FOR A MAXIMUM OF SIXTY (60) DAYS. IF YOU WISH TO BE CONSIDERED FOR EMPLOYMENT AFTER THAT TIME, YOU MUST REAPPLY.

I CERTIFY THAT ALL OF THE INFORMATION THAT I HAVE PROVIDED ON THIS APPLICATION IS TRUE, ACCURATE, AND COMPLETE.

DO NOT SIGN UNTIL YOU HAVE READ ALL OF THE INFORMATION CONTAINED IN THE APPLICATION.

Applicant Signature *Amiee C. Kelly* **Date** 7 / 8 / 21

If the applicant is a minor, the foregoing release and consent must be signed by the applicant's parent or legal guardian. Signature by the applicant's parent or legal guardian constitutes acknowledgement by the applicant and the parent or legal guardian that the Company, to the extent permitted by federal, state, and local law, can test the applicant for illegal or controlled substances, conduct inspections of property without notice, and communicate test results to Company personnel who need to know, the applicant, and the applicant's legal guardian.

Parent/Legal Guardian

Witness

Date

Date

UNDER MARYLAND LAW, AN EMPLOYER MAY NOT REQUIRE OR DEMAND, AS A CONDITION OF EMPLOYMENT, PROSPECTIVE EMPLOYMENT, OR CONTINUED EMPLOYMENT, THAT AN INDIVIDUAL SUBMIT TO OR TAKE A LIE DETECTOR, POLYGRAPH, OR SIMILAR TEST. AN EMPLOYER WHO VIOLATES THIS LAW IS GUILTY OF A MISDEMEANOR AND SUBJECT TO A FINE NOT EXCEEDING \$100. I have read and understand the above statement.

Applicant Signature _____ **Date** _____ / _____ / _____

IT IS UNLAWFUL IN MASSACHUSETTS TO REQUIRE OR ADMINISTER A LIE DETECTOR TEST AS A CONDITION OF EMPLOYMENT OR CONTINUED EMPLOYMENT. AN EMPLOYER WHO VIOLATES THIS LAW SHALL BE SUBJECT TO CRIMINAL PENALTIES AND CIVIL LIABILITY.

FOR CALIFORNIA APPLICANTS ONLY: BY CHECKING THIS BOX, I WAIVE MY RIGHT TO RECEIVE A COPY OF ANY PUBLIC RECORD OBTAINED BY THE COMPANY FOR EMPLOYMENT PURPOSES THROUGH AN INTERNAL INVESTIGATION. ☐

FEDERAL AND/OR STATE LAW MAY PROHIBIT THE USE OF LIE DETECTOR, POLYGRAPH OR SIMILAR TEST AS WELL.

THIS APPLICATION MAY NOT BE SUFFICIENT FOR ALL INDUSTRIES OR APPROPRIATE FOR USE IN ALL LOCALITIES.

*This employment application not appropriate for use by Rhode Island employers exempt from the state's Workers' Compensation laws.



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JOB DESCRIPTION

Job Title: **Territory Sales Manager**
FLSA Status: Exempt
Reports to: Regional Sales Manager

Position Summary:

Achieves sales and growth targets by developing new customer accounts and increasing sales within existing accounts.

Subordinate Summary:

This position has no formal supervisory responsibilities.

Essential Job Results and Responsibilities:

Direct Sales Results and Responsibilities

1. Contacts existing and prospective customers to uncover, clarify, or amplify needs & opportunities. Prospects for new customers and finds new quality leads.
2. Qualifies new and existing opportunities to determine revenue potential and creditworthiness.
3. Prioritizes new and existing accounts in terms of margin and profitability. Rebalances time and energy to focus on accounts with the highest growth and margin potential.
4. Positions Johnstone products and services as a strategic advantage to customers by communicating Johnstone's value proposition and business drivers.
5. Recommends products and services to customers, based on customers' business needs.
6. Effectively counters customer objections. Negotiates with customer to grow business while maintaining margin and service targets.
7. Demonstrates and explains the advantages of Johnstone in meeting customer needs. Solicits customer orders while maintaining required margin on all transactions.
8. Establishes and expands relationships with key people and decision-makers within each customer organization. Develops new customers and contacts to expand customer base.
9. Consults with clients after sales to resolve problems and to provide ongoing support.
10. Monitors market conditions, product innovations, and competitors' products, prices, and sales.
11. Proactively follows up on leads generated from within branch stores and other sources.
12. May negotiate details of contracts and payments, and prepares sales contracts and order

Job Description- Territory Sales Manager

forms.

Sales Support Results and Responsibilities

1. Develops territory and sales plans to target key customers and prioritize sales activities. Adheres to Johnstone sales process.
2. Reports activities according to established sales process. Accurately forecasts business to management.
3. Participates with management in updating territory plans and setting sales, margin and service goals.
4. Interacts cooperatively with in-store personnel to service existing accounts.
5. Maintains knowledge of new and existing products and inventory by participating in training, studying Johnstone and industry catalogs and web sites, and seeking knowledge from sales manager and experienced sales representatives.

General Results and Responsibilities

1. Adheres to all company policies, procedures and business ethics codes.
2. Represents Johnstone Supply at trade associations, events and local chapters.

Johnstone Supply believes that each employee's contribution should not be limited by the assigned responsibilities. Therefore, it is expected that each employee will offer his/her services wherever and whenever necessary to ensure the success of our endeavors.

Qualifications:

To perform this job successfully, an individual must be able to perform each essential job function satisfactorily. The requirements listed below are representative of the knowledge, skills, and/or abilities required. Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Education and Experience:

Required:

- High School Diploma / GED required *OR* equivalent combination of education and experience.
- Minimum of 2 years of documented successful direct sales experience.

Preferred:

- 3 or more years of successful direct sales experience.
- Direct sales experience in the business-to-business HVAC/R or similar industry.

Job-Specific Knowledge, Skills & Abilities

- Honest, loyal and ethical, and be capable of participating in a spirited team environment with like values.
- Demonstrated tenacity in achieving sales goals.
- Demonstrated understanding and application of effective sales strategies and techniques.
- Skill in building long term customer relationships.

Job Description- Territory Sales Manager

- Ability to maintain a professional, positive, courteous, and friendly demeanor around customers, vendors and employees.
- Skill in proactively communicating (both verbal and written) to establish relationships and influence decisions.
- Excellent negotiation and objection countering skills.
- Skill in solving non-routine, unstructured problems using critical thought to identify the strengths and weaknesses of alternative solutions.
- Strong project management and multi-tasking skills.
- Knowledge of principles and methods of selling products and services.
- Knowledge of Microsoft Office, CRM software, email and internet-based research.
- Ability to manage coworker and customer interactions with tact and diplomacy.
- Self motivated
- Displays persistence, with strong drive to succeed.

Expected Work Behaviors:

- Keeps the company's best interest in mind at all times.
- Consistently works to promote company growth while maintaining ethical standards.
- Maintains a professional personal appearance.
- Strives for continuous self-improvement and for improvement of the business with respect to sales, service quality, and profitability.

Physical Demands & Work Environment:

The physical demands and work environment characteristics described here are representative of those an employee encounters while performing the essential functions of this job.

Reasonable accommodations may be made to enable individuals with disabilities to perform the essential functions.

Physical: While performing the duties of this job, the employee is required to drive a car, stand and walk on a hard surface for the majority of the workday. The employee is regularly required to reach with hands and arms, climb and balance; stoop, kneel, crouch or crawl. The employee is frequently required to lift and carry and/or move up to 50 pounds, and occasionally required to lift up to 70 pounds. Specific vision abilities required by this job include close vision, color vision, depth perception, and ability to adjust focus. The ability to speak and hear sufficiently to provide customer service is required.

Work environment: Most work is performed at customer sites with cellular phone, car, and/or computer.

Skills Summary:

Sales Aptitude	Oral Communications
Problem Solving Skills	Organization
Written Communication Skills	Time Management
Energetic	Reading Skills

Job Description- Territory Sales Manager

Interpersonal & Telephone Skills

Diplomacy

Math Aptitude

Mechanical Skills

Computer Skills

Technical Skills

Ability to lift up to 70 pounds

The Territory Sales Manager will maintain the strictest confidentiality on all corporate matters including, but not limited to: marketing strategies, operational structures, pricing and all subjects that may have an adverse effect on the company in the marketplace if they were made known outside the company.

Approved by:


Incumbent

Date

Supervisor

Date

Employee Information Form

Employer to Complete

Client Number ADP H1J

Date 7/8/21

Select One ☒ New Employee
☐ Update Current Employee Information
☐ Rehire Previous Employee on Paychex System

Employee Number 00 0000835

Department Number 141

Job Title Territory Sales Manager

Hire Date 7/8/2021

Birth Date 04/12/1964

Workers' Compensation Class Code 8742

☒ Full-time ☐ Part-time ☐ Seasonal

Salary (Per Pay Period) \$ 2115.38

OR

Hourly Rate 1 \$ _____ Hourly Rate 2 \$ _____ Hourly Rate 3 \$ _____

Payroll Frequency ☐ Weekly ☒ Bi-weekly ☐ Semi-monthly ☐ Monthly

Federal Exemptions 0 Additional \$ 0 Flat \$ 0

What state does this employee work in? NY

What state should be withholding for this employer? NY

State Exemptions 0 Additional \$ 0 Flat \$ 0

Are local taxes required? ☐ Yes - Town/City/County NO ☐ No

Will direct deposit be sent to this employee? ☒ Yes ☐ No

Employee to Complete

Last Name Spielberger First Name Kenée Initial E.

Address 7527 Colbart Rd. County Cornese

City Bergen State NY Zip Code 14416

Telephone Number (585) 230-9659 Sex ☐ Male ☒ Female

Work E-mail Address Kenée.Spielberger@JohnstoneHVAC-NY.com

Personal E-mail Address (optional) Kenée464@aol.com

Marital Status ☐ Single ☒ Married ☐ Married, but Withhold at Higher Single Rate

Social Security Number 059-64-4864

Emergency Contact Information

Name Donald Spielberger Relationship Husband

Emergency Telephone (585) 230-9658



Notice and Acknowledgement of Pay Rate and Payday
Under Section 195.1 of the New York State Labor Law
Notice for Exempt Employees

1. Employer Information

Name:

The KL Group, Inc.

Doing Business As (DBA) Name(s):

Johnstone Supply of Central NY
Johnstone Supply of Rochester
Johnstone Supply of Syracuse

FEIN (optional):

Physical Address:

77 Halstead St. Suite 3
Rochester, NY 14610

Mailing Address:

Same as Physical Address

Phone: 585-482-8000

2. Notice given:

☒ At hiring

☐ Before a change in pay rate(s),
allowances claimed, or payday

3. Employee's pay rate(s): State if pay is

based on an hourly, salary, day rate,
piece rate, or other basis.

\$ 215.38 Salary

Employers may not pay a non-hourly rate to
a non-exempt employee in the Hospitality
Industry, except for commissioned
salespeople.

4. Allowances taken:

☒ None

☐ Tips _____ per hour

☐ Meals _____ per meal

☐ Lodging _____

☐ Other _____

5. Regular payday: Friday

6. Pay is:

☐ Weekly

☒ Bi-weekly

☐ Other: _____

7. Overtime Pay Rate:

Most workers in NYS must receive at least
1½ times their regular rate of pay for all
hours worked over 40 in a workweek, with
few exceptions. A limited number of
employees must only be paid overtime at
1½ times the minimum wage rate, or not at
all.

This employee is exempt from overtime
under the following exemption (optional):

8. Employee Acknowledgement:

On this day, I received notice of my pay
rate, overtime rate (if eligible), allowances,
and designated payday. I told my employer
what my primary language is.

Check one:

☒ I have been given this pay notice in
English because it is my primary language.

☐ My primary language is _____. I
have been given this pay notice in English
only, because the Department of Labor
does not yet offer a pay notice form in my
primary language.

Ranee E. Spierberg
Print Employee Name

Ranee E. Spierberg
Employee Signature

7/8/21
Date

Kenneth Livingston, President

Preparer Name and Title

The employee must receive a signed
copy of this form. The employer must
keep the original for 6 years.

Please note: It is unlawful for an employee
to be paid less than an employee of the
opposite sex for equal work. Employers also
may not prohibit employees from discussing
wages with their co-workers.

Employee's Withholding Certificate

OMB No. 1545-0074

2021

- ▶ **Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay.**
▶ **Give Form W-4 to your employer.**
▶ **Your withholding is subject to review by the IRS.**

Step 1:
Enter
Personal
Information

(a) First name and middle initial Renee E.	Last name Spielberger	(b) Social security number 059-64 4864
Address 7527 Gilbert Rd.		▶ Does your name match the name on your social security card? If not, to ensure you get credit for your earnings, contact SSA at 800-772-1213 or go to www.ssa.gov .
City or town, state, and ZIP code Bergen, NY 14416		
(c) ☒ Single or Married filing separately ☐ Married filing jointly or Qualifying widow(er) ☐ Head of household (Check only if you're unmarried and pay more than half the costs of keeping up a home for yourself and a qualifying individual.)		

Complete Steps 2-4 ONLY if they apply to you; otherwise, skip to Step 5. See page 2 for more information on each step, who can claim exemption from withholding, when to use the estimator at www.irs.gov/W4App, and privacy.

Step 2:
Multiple Jobs
or Spouse
Works

Complete this step if you (1) hold more than one job at a time, or (2) are married filing jointly and your spouse also works. The correct amount of withholding depends on income earned from all of these jobs.

Do **only one** of the following.

- (a) Use the estimator at www.irs.gov/W4App for most accurate withholding for this step (and Steps 3-4); **or**
 (b) Use the Multiple Jobs Worksheet on page 3 and enter the result in Step 4(c) below for roughly accurate withholding; **or**
 (c) If there are only two jobs total, you may check this box. Do the same on Form W-4 for the other job. This option is accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld ▶ ☐

TIP: To be accurate, submit a 2021 Form W-4 for all other jobs. If you (or your spouse) have self-employment income, including as an independent contractor, use the estimator.

Complete Steps 3-4(b) on Form W-4 for only ONE of these jobs. Leave those steps blank for the other jobs. (Your withholding will be most accurate if you complete Steps 3-4(b) on the Form W-4 for the highest paying job.)

Step 3: Claim Dependents	If your total income will be \$200,000 or less (\$400,000 or less if married filing jointly):		
	Multiply the number of qualifying children under age 17 by \$2,000 ▶ \$		
	Multiply the number of other dependents by \$500 ▶ \$		
	Add the amounts above and enter the total here	3	\$ 0
Step 4 (optional): Other Adjustments	(a) Other income (not from jobs). If you want tax withheld for other income you expect this year that won't have withholding, enter the amount of other income here. This may include interest, dividends, and retirement income	4(a)	\$ 0
	(b) Deductions. If you expect to claim deductions other than the standard deduction and want to reduce your withholding, use the Deductions Worksheet on page 3 and enter the result here	4(b)	\$ 0
	(c) Extra withholding. Enter any additional tax you want withheld each pay period .	4(c)	\$ 0

Step 5: Sign Here	Under penalties of perjury, I declare that this certificate, to the best of my knowledge and belief, is true, correct, and complete.		
	Employee's signature (This form is not valid unless you sign it.) Renee E. Spielberger		Date 7/6/21

Employers Only	Employer's name and address	First date of employment	Employer identification number (EIN)
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General Instructions

Future Developments

For the latest information about developments related to Form W-4, such as legislation enacted after it was published, go to www.irs.gov/FormW4.

Purpose of Form

Complete Form W-4 so that your employer can withhold the correct federal income tax from your pay. If too little is withheld, you will generally owe tax when you file your tax return and may owe a penalty. If too much is withheld, you will generally be due a refund. Complete a new Form W-4 when changes to your personal or financial situation would change the entries on the form. For more information on withholding and when you must furnish a new Form W-4, see Pub. 505, Tax Withholding and Estimated Tax.

Exemption from withholding. You may claim exemption from withholding for 2021 if you meet both of the following conditions: you had no federal income tax liability in 2020 **and** you expect to have no federal income tax liability in 2021. You had no federal income tax liability in 2020 if (1) your total tax on line 24 on your 2020 Form 1040 or 1040-SR is zero (or less than the sum of lines 27, 28, 29, and 30), or (2) you were not required to file a return because your income was below the filing threshold for your correct filing status. If you claim exemption, you will have no income tax withheld from your paycheck and may owe taxes and penalties when you file your 2021 tax return. To claim exemption from withholding, certify that you meet both of the conditions above by writing "Exempt" on Form W-4 in the space below Step 4(c). Then, complete Steps 1(a), 1(b), and 5. Do not complete any other steps. You will need to submit a new Form W-4 by February 15, 2022.

Your privacy. If you prefer to limit information provided in Steps 2 through 4, use the online estimator, which will also increase accuracy.

As an alternative to the estimator: if you have concerns with Step 2(c), you may choose Step 2(b); if you have concerns with Step 4(a), you may enter an additional amount you want withheld per pay period in Step 4(c). If this is the only job in your household, you may instead check the box in Step 2(c), which will increase your withholding and significantly reduce your paycheck (often by thousands of dollars over the year).

When to use the estimator. Consider using the estimator at www.irs.gov/W4App if you:

1. Expect to work only part of the year;
2. Have dividend or capital gain income, or are subject to additional taxes, such as Additional Medicare Tax;
3. Have self-employment income (see below); or
4. Prefer the most accurate withholding for multiple job situations.

Self-employment. Generally, you will owe both income and self-employment taxes on any self-employment income you receive separate from the wages you receive as an employee. If you want to pay these taxes through withholding from your wages, use the estimator at www.irs.gov/W4App to figure the amount to have withheld.

Nonresident alien. If you're a nonresident alien, see Notice 1392, Supplemental Form W-4 Instructions for Nonresident Aliens, before completing this form.

Specific Instructions

Step 1(c). Check your anticipated filing status. This will determine the standard deduction and tax rates used to compute your withholding.

Step 2. Use this step if you (1) have more than one job at the same time, or (2) are married filing jointly and you and your spouse both work.

Option (a) most accurately calculates the additional tax you need to have withheld, while option (b) does so with a little less accuracy.

If you (and your spouse) have a total of only two jobs, you may instead check the box in option (c). The box must also be checked on the Form W-4 for the other job. If the box is checked, the standard deduction and tax brackets will be cut in half for each job to calculate withholding. This option is roughly accurate for jobs with similar pay; otherwise, more tax than necessary may be withheld, and this extra amount will be larger the greater the difference in pay is between the two jobs.



Multiple jobs. Complete Steps 3 through 4(b) on only one Form W-4. Withholding will be most accurate if you do this on the Form W-4 for the highest paying job.

Step 3. This step provides instructions for determining the amount of the child tax credit and the credit for other dependents that you may be able to claim when you file your tax return. To qualify for the child tax credit, the child must be under age 17 as of December 31, must be your dependent who generally lives with you for more than half the year, and must have the required social security number. You may be able to claim a credit for other dependents for whom a child tax credit can't be claimed, such as an older child or a qualifying relative. For additional eligibility requirements for these credits, see Pub. 972, Child Tax Credit and Credit for Other Dependents. You can also include **other tax credits** in this step, such as education tax credits and the foreign tax credit. To do so, add an estimate of the amount for the year to your credits for dependents and enter the total amount in Step 3. Including these credits will increase your paycheck and reduce the amount of any refund you may receive when you file your tax return.

Step 4 (optional).

Step 4(a). Enter in this step the total of your other estimated income for the year, if any. You shouldn't include income from any jobs or self-employment. If you complete Step 4(a), you likely won't have to make estimated tax payments for that income. If you prefer to pay estimated tax rather than having tax on other income withheld from your paycheck, see Form 1040-ES, Estimated Tax for Individuals.

Step 4(b). Enter in this step the amount from the Deductions Worksheet, line 5, if you expect to claim deductions other than the basic standard deduction on your 2021 tax return and want to reduce your withholding to account for these deductions. This includes both itemized deductions and other deductions such as for student loan interest and IRAs.

Step 4(c). Enter in this step any additional tax you want withheld from your pay **each pay period**, including any amounts from the Multiple Jobs Worksheet, line 4. Entering an amount here will reduce your paycheck and will either increase your refund or reduce any amount of tax that you owe.



Department of Taxation and Finance

Employee's Withholding Allowance Certificate

New York State • New York City • Yonkers

IT-2104

First name and middle initial <i>Renee E.</i>		Last name <i>Spielberger</i>		Your Social Security number <i>059-64-4864</i>							
Permanent home address (number and street or rural route) <i>7527 Gilbert Rd.</i>				Apartment number							
City, village, or post office <i>Bergen</i>		State <i>NY</i>		ZIP code <i>14416</i>							
Are you a resident of New York City? Yes ☐ No ☒ Are you a resident of Yonkers? Yes ☐ No ☒											
Single or Head of household ☐ Married ☒ Married, but withhold at higher single rate ☐ Note: If married but legally separated, mark an X in the Single or Head of household box.											
Complete the worksheet on page 4 before making any entries. 1 Total number of allowances you are claiming for New York State and Yonkers, if applicable (from line 19) <table border="1" style="float: right;"><tr><td>1</td><td>6</td></tr></table> 2 Total number of allowances for New York City (from line 31) <table border="1" style="float: right;"><tr><td>2</td><td>0</td></tr></table>						1	6	2	0		
1	6										
2	0										
Use lines 3, 4, and 5 below to have additional withholding per pay period under special agreement with your employer. 3 New York State amount <table border="1" style="float: right;"><tr><td>3</td><td>6</td></tr></table> 4 New York City amount <table border="1" style="float: right;"><tr><td>4</td><td></td></tr></table> 5 Yonkers amount <table border="1" style="float: right;"><tr><td>5</td><td></td></tr></table>						3	6	4		5	
3	6										
4											
5											

I certify that I am entitled to the number of withholding allowances claimed on this certificate.

Employee's signature <i>Renee E. Spielberger</i>	Date <i>7/8/21</i>
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Penalty – A penalty of \$500 may be imposed for any false statement you make that decreases the amount of money you have withheld from your wages. You may also be subject to criminal penalties.

Employee: detach this page and give it to your employer; keep a copy for your records.

Employer: Keep this certificate with your records.

Mark an X in box A and/or box B to indicate why you are sending a copy of this form to New York State (see instructions):

A Employee claimed more than 14 exemption allowances for NYS A ☐

B Employee is a new hire or a rehire ... B ☐ First date employee performed services for pay (mm-dd-yyyy) (see instr.):

Are dependent health insurance benefits available for this employee? Yes ☐ No ☐

If Yes, enter the date the employee qualifies (mm-dd-yyyy):

Employer's name and address (Employer: complete this section only if you are sending a copy of this form to the NYS Tax Department.)	Employer identification number

Instructions**Changes effective for 2021**

Form IT-2104 has been revised for tax year 2021. The worksheet on page 4 and the charts beginning on page 5, used to compute withholding allowances or to enter an additional dollar amount on line(s) 3, 4, or 5, have been revised. If you previously filed a Form IT-2104 and used the worksheet or charts, you should complete a new 2021 Form IT-2104 and give it to your employer.

Who should file this form

This certificate, Form IT-2104, is completed by an employee and given to the employer to instruct the employer how much New York State (and New York City and Yonkers) tax to withhold from the employee's pay. The more allowances claimed, the lower the amount of tax withheld.

If the federal Form W-4 you most recently submitted to your employer was for tax year 2019 or earlier, and you did not file Form IT-2104, your employer may use the same number of allowances you claimed on your federal Form W-4. Due to differences in federal and New York State tax law, this may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

For tax years 2020 or later, withholding allowances are no longer reported on federal Form W-4. Therefore, if you submit a federal Form W-4 to your

employer for tax year 2020 or later, and you do not file Form IT-2104, your employer may use zero as your number of allowances. This may result in the wrong amount of tax withheld for New York State, New York City, and Yonkers.

Complete Form IT-2104 each year and file it with your employer if the number of allowances you may claim is different from federal Form W-4 or has changed. Common reasons for completing a new Form IT-2104 each year include the following:

- You started a new job.
- You are no longer a dependent.
- Your individual circumstances may have changed (for example, you were married or have an additional child).
- You moved into or out of NYC or Yonkers.
- You itemize your deductions on your personal income tax return.
- You claim allowances for New York State credits.
- You owed tax or received a large refund when you filed your personal income tax return for the past year.
- Your wages have increased and you expect to earn \$107,650 or more during the tax year.

- The total income of you and your spouse has increased to \$107,650 or more for the tax year.
- You have significantly more or less income from other sources or from another job.
- You no longer qualify for exemption from withholding.
- You have been advised by the Internal Revenue Service that you are entitled to fewer allowances than claimed on your original federal Form W-4 (submitted to your employer for tax year 2019 or earlier), and the disallowed allowances were claimed on your original Form IT-2104.
- You are a covered employee of an employer that has elected to participate in the Employer Compensation Expense Program.

Exemption from withholding

You cannot use Form IT-2104 to claim exemption from withholding. To claim exemption from income tax withholding, you **must** file Form IT-2104-E, *Certificate of Exemption from Withholding*, with your employer. You must file a new certificate each year that you qualify for exemption. This exemption from withholding is allowable only if you had no New York income tax liability in the prior year, you expect none in the current year, and you are over 65 years of age, under 18, or a full-time student under 25. You may also claim exemption from withholding if you are a military spouse and meet the conditions set forth under the Servicemembers Civil Relief Act as amended by the Military Spouses Residency Relief Act and the Veterans Benefits and Transition Act. If you are a dependent who is under 18 or a full-time student, you may owe tax if your income is more than \$3,100.

Withholding allowances

You may **not** claim a withholding allowance for yourself or, if married, your spouse. Claim the number of withholding allowances you compute in Part 1 and Part 4 of the worksheet on page 4. If you want more tax withheld, you may claim fewer allowances. **If you claim more than 14 allowances**, your employer **must** send a copy of your Form IT-2104 to the New York State Tax Department. You may then be asked to verify your allowances. If you arrive at negative allowances (less than zero) on lines 1 or 2 and your employer cannot accommodate negative allowances, enter 0 and see *Additional dollar amount(s)* below.

Income from sources other than wages – If you have more than \$1,000 of income from sources other than wages (such as interest, dividends, or alimony received), reduce the number of allowances claimed on line 1 and line 2 (if applicable) of the IT-2104 certificate by one for each \$1,000 of nonwage income. If you arrive at negative allowances (less than zero), see *Withholding allowances* above. You may also consider making estimated tax payments, especially if you have significant amounts of nonwage income. Estimated tax requires that payments be made by the employee directly to the Tax Department on a quarterly basis. For more information, see the instructions for Form IT-2105, *Estimated Tax Payment Voucher for Individuals*, or see *Need help?* on page 7.

Other credits (Worksheet line 14) – If you will be eligible to claim any credits other than the credits listed in the worksheet, such as an investment tax credit, you may claim additional allowances.

Find your filing status and your New York adjusted gross income (NYAGI) in the chart below, and divide the amount of the expected credit by the number indicated. Enter the result (rounded to the nearest whole number) on line 14.

Single and NYAGI is:	Head of household and NYAGI is:	Married and NYAGI is:	Divide amount of expected credit by:
Less than \$215,400	Less than \$269,300	Less than \$323,200	65
Between \$215,400 and \$1,077,550	Between \$269,300 and \$1,616,450	Between \$323,200 and \$2,155,350	68
Over \$1,077,550	Over \$1,616,450	Over \$2,155,350	88

Example: You are married and expect your New York adjusted gross income to be less than \$323,200. In addition, you expect to receive a flow-through of an investment tax credit from the S corporation of which you are a shareholder. The investment tax credit will be \$160. Divide the expected credit by 65. $160/65 = 2.4615$. The additional withholding allowance(s) would be 2. Enter 2 on line 14.

Married couples with both spouses working – If you and your spouse both work, you should each file a separate IT-2104 certificate with your respective employers. Your withholding will better match your total tax if the higher wage-earning spouse claims all of the couple's allowances and the lower wage-earning spouse claims zero allowances. **Do not** claim more total allowances than you are entitled to. If your combined wages are:

- less than \$107,650, you should each mark an **X** in the box *Married, but withhold at higher single rate* on the certificate front, and divide the total number of allowances that you compute on line 19 and line 31 (if applicable) between you and your working spouse.
- \$107,650 or more, use the chart(s) in Part 5 and enter the additional withholding dollar amount on line 3.

Taxpayers with more than one job – If you have more than one job, file a separate IT-2104 certificate with each of your employers. Be sure to claim only the total number of allowances that you are entitled to. Your withholding will better match your total tax if you claim all of your allowances at your higher-paying job and zero allowances at the lower-paying job. In addition, to make sure that you have enough tax withheld, if you are a single taxpayer or head of household with two or more jobs, and your combined wages from all jobs are under \$107,650, reduce the number of allowances by seven on line 1 and line 2 (if applicable) on the certificate you file with your higher-paying job employer. If you arrive at negative allowances (less than zero), see *Withholding allowances* above.

If you are a single or a head of household taxpayer, and your combined wages from all of your jobs are between \$107,650 and \$2,263,265, use the chart(s) in Part 6 and enter the additional withholding dollar amount from the chart on line 3.

If you are a married taxpayer, and your combined wages from all of your jobs are \$107,650 or more, use the chart(s) in Part 5 and enter the additional withholding dollar amount from the chart on line 3 (Substitute the words *Higher-paying job* for *Higher earner's wages* within the chart).

Dependents – If you are a dependent of another taxpayer and expect your income to exceed \$3,100, you should reduce your withholding allowances by one for each \$1,000 of income over \$2,500. This will ensure that your employer withholds enough tax.

Following the above instructions will help to ensure that you will not owe additional tax when you file your return.

Heads of households with only one job – If you will use the head-of-household filing status on your state income tax return, mark the *Single or Head of household* box on the front of the certificate. If you have only one job, you may also wish to claim two additional withholding allowances on line 15.

Additional dollar amount(s)

You may ask your employer to withhold an additional dollar amount each pay period by completing lines 3, 4, and 5 on Form IT-2104. In most instances, if you compute a negative number of allowances and your employer cannot accommodate a negative number, for each negative allowance claimed you should have an additional \$1.85 of tax withheld per week for New York State withholding on line 3, and an additional \$0.80 of tax withheld per week for New York City withholding on line 4. Yonkers residents should use 16.75% (.1675) of the New York State amount for additional withholding for Yonkers on line 5.

Note: If you are requesting your employer to withhold an additional dollar amount on lines 3, 4, or 5 of this allowance certificate, the additional dollar amount, as determined by these instructions or by using the chart(s) in Part 5 or Part 6, is accurate for a weekly payroll. Therefore, if you are not paid on a weekly basis, you will need to adjust the dollar amount(s) that you compute. For example, if you are paid biweekly, you must double the dollar amount(s) computed.

Avoid underwithholding

Form IT-2104, together with your employer's withholding tables, is designed to ensure that the correct amount of tax is withheld from your pay. If you fail to have enough tax withheld during the entire year, you may owe a large tax liability when you file your return. The Tax Department must assess interest and may impose penalties in certain situations in addition to the tax liability. Even if you do not file a return, we may determine that you owe personal income tax, and we may assess interest and penalties on the amount of tax that you should have paid during the year.

POST-OFFER SELF-IDENTIFICATION FORM

Name:

Renee Spielberger

Date:

7/8/21

Johnstone Supply is an Equal Opportunity Employer committed to the policies and principles of Non-Discrimination and Affirmative Action.

GENDER: (Check one)

☐ Male

☒ Female

RACE/ETHNICITY:

Are you Hispanic or Latino?

Yes ☐

No ☒

If you answered "No" to the question "Are you Hispanic or Latino?" please check the applicable race box (check one):

☒ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American (Not Hispanic or Latino)

☐ Two or More Races – All persons who identify with more than one of the above five races. (Not Hispanic or Latino)

If you selected "Two or More Races" please identify the race with which you primarily identify:

☐ White (Not Hispanic or Latino)

☐ American Indian or Alaska Native (Not Hispanic or Latino)

☐ Asian (Not Hispanic or Latino)

☐ Native Hawaiian or Other Pacific Islander (Not Hispanic or Latino)

☐ Black or African American
(Not Hispanic or Latino)

VETERAN STATUS: (Check all that apply)

☒ I am **not** a veteran under any of the categories below. **OR** I am **not** a veteran of the U.S. Armed Forces.

☐ I am a **Disabled Veteran** – (1) A veteran of the U.S. military, ground, naval or air service who is entitled to compensation (or who but for the receipt of military retired pay would be entitled to compensation) under laws administered by the Secretary of Veterans Affairs, or (2) A person who was discharged or released from active duty because of a service-connected disability.

☐ I am a **Recently Separated Veteran** – Any veteran during the three-year period beginning on the date of such veteran's discharge or release from active duty in the U.S. military service.

Enter Date of Separation: _____

☐ I am an **Armed Forces Service Medal Veteran** – Any veteran who, while serving on active duty in the U.S. military, ground, naval or air service, participated in a United States military operation for which an Armed Forces service medal was awarded pursuant to Executive Order 12985.

☐ I am an **Other Protected Veteran** – A veteran who served on active duty in the U.S. military, ground, naval or air service during a war or in a campaign or expedition for which a campaign badge has been authorized, under the laws administered by the Department of Defense.



Direct Deposit Enrollment/Change Form*

Company Name and/or Client Number Johnstone Supply of CNY

Employee/Worker Name _____ Employee/Worker Number _____

EMPLOYEE/WORKER: Retain a copy of this form for your records. Return the original to your employer/company.

EMPLOYER/COMPANY: Return this form to your local Paychex office. For clients using on-line services, please retain a copy of this document for your records.

COMPLETE TO ENROLL / ADD / CHANGE BANK ACCOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☒ Checking ☐ Savings	Accountholder's Name: <u>Renee Spielberger</u>
Routing/Transit Number <u>222371863</u>	
Checking/Savings Account Number** <u>1380416017</u>	
Financial Institution ("Bank") Name <u>ESL Federal Credit Union</u>	
I wish to deposit (check one) ☒ 100 % of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay	
Type of Account: ☐ Checking ☐ Savings	Accountholder's Name: _____
Routing/Transit Number _____	
Checking/Savings Account Number** _____	
Financial Institution ("Bank") Name _____	
I wish to deposit (check one): ☐ _____ % of Net ☐ Specific Dollar Amount \$ _____ .00 ☐ Remainder of Net Pay	

COMPLETE IF CHANGING EXISTING DEPOSIT AMOUNTS - PLEASE PRINT CLEARLY IN BLACK/BLUE INK ONLY

Type of Account: ☐ Checking ☐ Savings	Accountholder's Name: _____
Routing/Transit Number _____	
Checking/Savings Account Number** _____	
Financial Institution ("Bank") Name _____	
I wish to change my deposit amount to (check one): ☐ From _____ % to _____ % of Net ☐ From \$ _____ .00 To \$ _____ .00 ☐ Remainder of Net Pay	

EMPLOYEE/WORKER CONFIRMATION STATEMENT

PLEASE SIGN IN BLACK/BLUE INK ONLY

I authorize my employer/company to deposit my earnings into the bank account(s) specified above and, if necessary, to electronically debit my account to correct erroneous entries. I certify my account(s) allow these transactions. Furthermore, I certify that the above listed account number accurately reflects my intended receiving account. I agree that direct deposit transactions I authorize comply with all applicable laws. My signature below indicates that I am agreeing that I am either the accountholder or have the authority of the accountholder to authorize my employer/company to make direct deposits into the named account.

Employee/Worker Signature Renee Spielberger Date 7/8/21

Note: Digital or Electronic Signatures are not acceptable.

I confirm that the above named employee/worker has added or changed a bank account for direct deposit transactions processed by Paychex, Inc. I have reviewed the information provided and it is accurate to the best of my knowledge. My signature below indicates that I have the authority to execute this document on behalf of the Client.

Employer/Company Representative Printed Name: _____

Employer/Company Representative Signature: _____ Date: _____

* All fields are required except Employee/Worker Number.

** Certain accounts may have restrictions on deposits and withdrawals. Check with your bank for more information specific to your account.



2021 Benefits Overview * Employee

Benefit	Description	Employee Contribution	Vestment Period
Health Insurance (Premium Only Plan – Section 125)	Excellus SimplyBlue Plus Gold 6 Company covers 50% of the equivalent Silver 19 premium cost and provides a Health Reimbursement Account (HRA) in the amount of \$1,400 single/\$4,300 family	Balance of premium costs <u>not</u> covered by the Company plus applicable out of pocket annual maximum of \$3,200 single/ \$6,400 family less employer provided HRA	Upon the completion of ninety (90) days
	Excellus SimplyBlue Silver 19 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus co- pays up to annual out of pocket maximum of \$6,750 single/ \$13,500 family less supplemental employer provided	Upon the completion of ninety (90) days
	Excellus SimplyBlue Plus Bronze 4 Company covers 50% of the premium cost and provides an HRA in the amount of \$2,250 single/\$5,500 family	50% of the premium costs plus applicable out of pocket annual maximum of \$7,000 single/ \$14,000 family less employer provided HRA	Upon the completion of ninety (90) days
Health Club Allowance	Company will pay 25% of annual dues to a maximum of \$100/year towards an active membership in a health club subject to prior approval	Any portion over company contribution	Upon the completion of ninety (90) days
Employee Assistance Program (EAP)	NextGen EAP a fully integrated work/life Employee Assistance Program (EAP), designed to help effectively balance the competing demands of work and life before personal problems affect professional performance	N/A	Upon the completion of ninety (90) days
Flexible Spending Account (Section 125-offered through Benefit Resource Inc.)	Flexible Spending Accounts are IRS-approved pre-tax accounts to help pay out-of-pocket medical, dental, vision, prescription drug and dependent care expenses not covered by other company insurance benefits	Voluntary contribution up to \$2,650 annually for medical; \$5,000 dependent care deduction	Upon the completion of ninety (90) days
Supplemental Short-Term Disability (offered through AFLAC)	Provides earnings coverage for up to 6 months of Temporary Disability when unable to work <i>This benefit supplements coverage for which you are entitled under NYS Disability Law</i>	100%	First of the month following ninety (90) days

Rochester
Syracuse
Lyons



Personal Accident Insurance (Premium Only Plan- Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of an injury caused by a covered accident including but not limited to travel costs, doctor/hospital visits and physical therapy, etc.	100%	First of the month following ninety (90) days
Personal Cancer Insurance (Premium Only Plan- Section 125) offered through AFLAC	Pre-tax coverage for benefits payable to you and/or your family in the event of a first occurrence determination of cancer Benefits paid to you for use at your discretion to cover expenditures over and above those provided by major medical	100%	First of the month following ninety (90) days
Dental & Vision Insurance (Premium Only Plan- Section 125- offered through Guardian)	Pre-tax coverage of dental and vision expenditures for you and/or your family	100%	Upon the completion of ninety (90) days
Group Term Life Insurance and AD&D Coverage (offered through Mutual of Omaha)	Life insurance coverage for you of \$50,000 Accidental Death & Dismemberment coverage for you of \$50,000. You can elect supplemental term life insurance in increments of \$10,000 up to a maximum of 5 times your annual salary	100% for supplemental term life coverage Spousal and Child(ren) insurance available	First of the month following ninety (90) days
National Holidays	6 paid days annually; New Year's Day, Memorial Day, Independence Day, Labor Day, Thanksgiving Day, Christmas Day	N/A	None
Paid Time Off	10 Days per year - weeks are not to be taken consecutively	N/A	First of the month following six (6) months service, prorated during first year of employment
	Additional 15 th floating PTO day in recognition of your birthday; to be used during the month of your birthday	N/A	15 th PTO day eligible after 3 years of service

Rochester
Syracuse
Lyons



PTO @ 5 Years	Additional 4 days of PTO in recognition of your years of service	N/A	Four (4) additional days of PTO eligible after five (5) years of service
NY Paid Sick Leave	40 hours of Paid Sick Leave annually	N/A	Accrual of one (1) hour of Paid Sick Leave for every thirty (30) hours worked
Tuition Reimbursement†	Company will pay up to 100% of tuition for job-related courses subject to prior approval	Any portion over company contribution.	One (1) year
Savings and Investment Plan	401K defined contribution plan		One (1) year, over 21 years of age, and works more than 1000 hours per year
	Company invests on behalf of each employee a percentage of annual gross wages for all plan-eligible employees in accordance with the following schedule:		
	Employee Contribution	Employer Match	
	1%	1%	
	2%	2%	
	3%	3%	
	4%	3.5%	
	5%	4%	
		Deferral of up to 25% of annual gross wages but not to exceed \$19,500	
		Additional \$6,500 catch-up contribution for employees aged 50 and over	
		Pre-tax and after-tax (Roth) programs available.	

* These benefits do not constitute a contract with the employee and may be subject to change without notice.

[‡] Subject to prior approval. Employee must achieve a minimum grade point average. Actual percentage is at the discretion of management.

NOTE: All Johnstone Supply employees are employed at will

I have received a copy of this document.

Rochester
Syracuse
Lyons

Employee Signature

Name of Employee (please print)

Date

Renée E. Spielberger

RENEE E. SPIELBERGER

6/7/21

General Handbook Acknowledgement

This Employee handbook is an important document intended to help you become acquainted with Johnstone Supply of Central NY. This document is intended to provide guidelines and general descriptions only; it is not the final word in all cases. Individual circumstances may call for individual attention.

Because the Company's operations may change, the contents of this handbook may be changed at any time, with or without notice, in an individual case or generally, at the sole discretion of management.

Please read the following statements and sign below to indicate your receipt and acknowledgment of this Employee handbook.

I have received and read a copy of Johnstone Supply of Central NY's Employee handbook. I understand that the policies, rules and benefits described in it are subject to change at the sole discretion of the Company at any time.

I further understand that my employment is terminable at will, either by myself or the Company, with or without cause or notice, regardless of the length of my employment or the granting of benefits of any kind.

I understand that no representative of Johnstone Supply of Central NY, other than the Owner may alter "at will" status and any such modification must be in a signed writing.

I understand that my signature below indicates that I have read and understand the above statements and that I have received a copy of the Company's Employee handbook.

Employee's Printed Name:	<i>Renee Spielberger</i>
Employee's Signature:	<i>Renee Spielberger</i>
Position:	<i>Sales</i>
Date:	<i>7/8/21</i>

The signed original copy of this acknowledgment should be given to management - it will be filed in your personnel file.

Receipt of Non-Harassment Policy

It is Johnstone Supply of Central NY's policy to prohibit intentional and unintentional harassment of any individual by another person on the basis of any protected classification including, but not limited to, race, color, national origin, disability, religion, marital status, veteran status, sexual orientation or age. The purpose of this policy is not to regulate our employees' personal morality, but to ensure that in the workplace, no one harasses another individual.

If an employee feels that he or she has been subjected to conduct which violates this policy, he or she should immediately report the matter to the Controller. If the employee is unable for any reason to contact this person, or if the employee has not received a satisfactory response within five (5) business days after reporting any incident of what the employee perceives to be harassment, the employee should contact the President. If the person toward whom the complaint is directed is one of the individuals indicated above, the employee should contact any higher-level manager in his or her reporting hierarchy. Every report of perceived harassment will be fully investigated and corrective action will be taken where appropriate. All complaints will be kept confidential to the extent possible, but confidentiality cannot be guaranteed. In addition, the Company will not allow any form of retaliation against individuals who report unwelcome conduct to management or who cooperate in the investigations of such reports in accordance with this policy. If an employee feels he or she has been subjected to any such retaliation, he or she should report it in the same manner in which the employee would report a claim of perceived harassment under this policy. Violation of this policy including any improper retaliatory conduct will result in disciplinary action, up to and including discharge. All employees must cooperate with all investigations.

I have read and I understand Johnstone Supply of Central NY's Non-Harassment Policy.

Employee's Printed Name: Renée Spielberger

Employee's Signature: Renée Spielberger

Position: Sales

Date: 7/8/21

The signed original copy of this receipt should be given to management - it will be filed in your personnel file.

1940



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Tel: (585) 482-8000 • Fax: (585) 482-6000
eMail: store141@johnstonesupply.com

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Toll Free: (877) 724-8806
Tel: (315) 479-8800 • Fax: (315) 479-8600
eMail: store269@johnstonesupply.com

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example, employees who work in New York City may file complaints of sexual harassment with the New York City Commission on Human Rights. Contact their main office at Law Enforcement Bureau of the NYC Commission on Human Rights, 40 Rector Street, 10th Floor, New York, New York; call 311 or (212) 306-7450; or visit www.nyc.gov/html/cchr/html/home/home.shtml.

Contact the Local Police Department

If the harassment involves unwanted physical touching, coerced physical confinement or coerced sex acts, the conduct may constitute a crime. Contact the local police department.

Employee Signature: Renee E. Spielberger

Print Name: Renee E. Spielberger

Date: 7/8/21



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Procedures

Employees who violate this policy will be subject to disciplinary action up to and including immediate discharge.

A process is in place for resolving complaints about the smoke- and vape-free policy:

- Complaints about the application of this policy should be brought to the attention of the Human Resources, Controller or the President for resolution.
- The complaint should be submitted in writing and should identify specific objections.
- Johnstone Supply of CNY will investigate the complaint and resolve it in accordance with the policy.

No employee shall suffer any form of retaliation for raising a complaint or asking a question about this policy.

This policy is intended to comply with the requirements of [title of ordinance].

Statement of Understanding

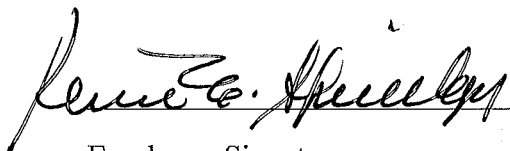
I have read and fully understand the terms of this policy.

I understand that any violation of this policy will result in disciplinary action up to and including immediate discharge.

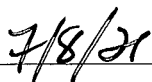
I understand that Johnstone Supply of CNY reserves the right to make changes to this policy as needed.



Employee Name



Employee Signature



Date



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Smoke and Vape-Free Workplace Policy

Introduction

Johnstone Supply of CNY is committed to providing a safe and healthy workplace and to promoting the health and well-being of its employees. As such, the following policy has been adopted and applies to all employees of Johnstone Supply of CNY.

Policy

It is the policy of Johnstone Supply of CNY to prohibit smoking and vaping on all company premises to provide a safe and healthy work environment for all employees. Smoking is defined as the "act of lighting, smoking or carrying a lighted or smoldering cigar, cigarette or pipe of any kind." Vaping refers to the use of electronic nicotine delivery systems or electronic smoking devices such as e-cigarettes, e-pipes, e-hookahs and e-cigars.

Scope

This policy applies to:

- All areas of buildings occupied by company employees.
- All company-sponsored offsite conferences and meetings.
- All vehicles owned or leased by the company.
- All company employees.
- All visitors (customers and vendors) to company premises.
- All contractors and consultants and/or their employees working on company premises.
- All temporary employees.
- All student interns.

Smoking and vaping are permitted *only* in the following designated outdoor areas:



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AUTHORIZATION TO DEDUCT EXPENSES

As a benefit of employment, you are accorded the opportunity to purchase product out of the catalog of **JOHNSTONE SUPPLY** at the cost prevailing at time of purchase. Unless authorized, purchases are intended for personal or immediate family use only.

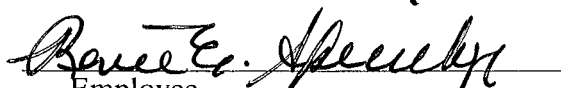
In addition, you will automatically be set up with a credit limit allowing you to charge purchases with net 30-day terms. Having this benefit will allow you to use **JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** as a credit reference when applying for credit elsewhere. Your credit limit will be reviewed periodically and adjusted accordingly.

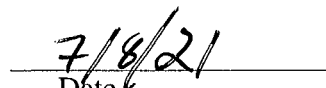
Obviously, abuse of this privilege puts this benefit at risk for you. Payment of obligations beyond terms and without previous authorized consent will suspend your benefit. Upon termination of employment, this benefit is voided, and all outstanding obligations are immediately due. Finance charges and collection expenses, if any, may also apply.

Since this is a benefit and a privilege of employment with **JOHNSTONE SUPPLY of Central NY** you are not obligated to use it, however, should you wish to take advantage of this unique opportunity you are asked to authorize the company to collect past due expenses by payroll deduction.

* * * *

I have read the information above and do hereby authorize **The KL Group, Inc., d/b/a JOHNSTONE SUPPLY of Central NY [Rochester/Syracuse]** the right to deduct any past due expenditures for company services or products acquired during the course of my employment for personal use from my paycheck.


Employee


Date

I have read the information above and do **not** wish to partake of the benefit offered to me.

Employee

Date



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EMPLOYEE ACCOUNT APPLICATION

Employee Name: Renee Spielberger
Address: 7527 Gilbert Rd.
Address 2: _____
City/ST/Zip: Bergen NY 14416
County: Cornwall
Phone: 585-230-9659 Fax #: 585-494-1369
Cell #: 585-236-9659 Other #: _____
Email Address: Renee.Spielberger@JohnstoneHVAC-NY.com
I, Renee Spielberger SS# 659-64-4864
OR Driver's License # 606-176-805

I hereby personally guarantee to you, Johnstone Supply of CNY, any obligation of the above named Employee and/or its successor. I also agree to bind myself to pay you on demand any sum, which may become due to you by the above named Employee, whenever the above named Employee fails to pay the same. If credit is granted, I agree to pay within established terms. If payment is not made within terms, I agree to pay all service charges. In the event this account is referred amount of twenty-five percent of the principal amount. If suit or action by an attorney amount of twenty-five percent of the principal amount. If suit or action by an attorney for collections, I agree to pay cost of collection equal to a minimum is instituted, I promise to pay attorney fees in said suit or action. Venue shall be in the state and county of Johnstone Supply's choice. Applicant specifically understands that they are waiving their right in choice of venue. Applicant agrees to pay interest and service charges at the highest rate permitted by law.

Signed: Renee E. Spielberger
Date: 7/8/21

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